

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 14, 2026
8:30 a.m./1:30 p.m.

14. STANLEY DURAN, JR. V. ROSE DURAN

25FL0820

The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on January 8, 2026, and a review hearing on March 26, 2026, following the court issuing a permanent restraining order protecting Respondent.

The parties appeared at the CCRC appointment and reached agreements regarding custody and parenting time. The agreements appear to conflict with the orders issued in the DV-140, which themselves are contradictory. A report with the parties' agreements and recommendations was filed with the court on January 20, 2026, and mailed to the parties on January 22nd.

Petitioner filed an ex parte request for emergency orders on March 17, 2026. On March 18, 2026, the court granted an order shortening time, as the parties had a review hearing set for March 26th. Petitioner filed the Request for Order (RFO) on March 18, 2026. Respondent was served on March 19th.

Parties appeared at the hearing on March 26, 2026. The court re-referred the parties to CCRC with an appointment on April 7, 2026 and set a further review hearing on May 14th.

Both parties appeared at CCRC on April 7th. The minors were interviewed as well. A report with recommendations was filed with the court on May 1, 2026 and mailed to the parties on May 4th.

Neither party has filed a Supplemental Declaration.

The court has reviewed the filings as outlined above. The court has also considered the Domestic Violence Restraining Order issued on December 17, 2025. The court finds the custody orders issued in the Domestic Violence Restraining Order, namely that Respondent was granted sole legal and physical custody, are in the minors' best interests. Further, the current parenting plan of week on/week off is incongruent with the orders for Respondent to have sole legal and physical custody. The court finds the presumption under Family Code section 3044 applies. The court further finds that Petitioner has failed to rebut the presumption. As such, the court is adopting the recommendations as set forth in the May 1st CCRC report that Respondent shall have sole legal and physical custody. Petitioner shall have parenting time every other weekend from Friday after school to Sunday at 7:00 PM. The court is adopting the remaining recommendations as set forth.

All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however,

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this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #14: THE COURT FINDS THE CUSTODY ORDERS ISSUED IN THE DOMESTIC VIOLENCE RESTRAINING ORDER, NAMELY THAT RESPONDENT WAS GRANTED SOLE LEGAL AND PHYSICAL CUSTODY ARE IN THE MINORS' BEST INTERESTS. FURTHER, THE CURRENT PARENTING PLAN OF WEEK ON/WEEK OFF IS INCONGRUENT WITH THE ORDERS FOR SOLE LEGAL AND PHYSICAL CUSTODY. THE COURT FINDS THE PRESUMPTION UNDER FAMILY CODE SECTION 3044 APPLIES. THE COURT FURTHER FINDS THAT PETITIONER HAS FAILED TO REBUT THE PRESUMPTION. AS SUCH, THE COURT IS ADOPTING THE RECOMMENDATIONS AS SET FORTH IN THE MAY 1ST CCRC REPORT THAT RESPONDENT SHALL HAVE SOLE LEGAL AND PHYSICAL CUSTODY. PETITIONER SHALL HAVE PARENTING TIME EVERY OTHER WEEKEND FROM FRIDAY AFTER SCHOOL TO SUNDAY AT 7:00 PM. THE COURT IS ADOPTING THE REMAINING RECOMMENDATIONS AS SET FORTH. ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.